is **denied**.

On one hand, the Court is not much impressed with plaintiff's objections based on privacy or privilege. As Cold Air correctly points out, by suing to recover (among other things) her medical expenses, plaintiff has put her medical treatment, and payment for it, directly in issue, waiving any privacy interests she would otherwise have in this respect. And the communications and agreements sought here are not with attorneys or anyone else working on plaintiff's legal prosecution of this case.

Nor is the Court persuaded by plaintiff's objections to the breadth or alleged vagueness of the requests, which appear to be reasonably well crafted to inform plaintiff as to what is sought, while being worded broadly enough to avoid evasion.

But on the other hand, the Court cannot agree with Cold Air as to the relevance of these materials or Cold Air's asserted need to discover them. Plaintiff is seeking to recover the value of medical services she has received, and what she has had to pay (or become financially liable for) for those services. Agreements on how plaintiff is to come up with the money to pay for those services is not pertinent. If plaintiff had paid her medical bills by borrowing the money from her parents or a bank, that would not make the details of those loans relevant to the measure of damages for medical costs. Even if, by formal agreement or practical understanding, it were expected that the providers would be paid out of the proceeds of a recovery or settlement, that is not directly relevant either. The latter scenario is more akin to medical liens imposed by health carriers or Medicare, the only difference being plaintiff's express agreement to them in advance.

Cold Air argues that the prospect of being paid out of a recovery could be a source of testimonial bias for the doctors and other providers who may testify in the case. It can't be denied that that's a potential source of witness bias; but that's a fact of life built into the plaintiff-doctor relationship, independent of any particular agreements that may exist. Even without any agreement at all in place between a plaintiff and her doctors, it would very likely be the case that doctors would know they're more likely to get paid if the plaintiff recovers in court, and it could be suspected or argued that that might bias their testimony. Cold Air is already free to ask the doctor-witnesses about that, and to argue to jurors about such bias. The particular detailed mechanisms by which such financial incentives would operate are not important.

(The Court notes that of the three unpublished decisions cited in Cold Air's opposition, one could not be found on Lexis and the other two are neither relevant nor helpful.)

15. 9:01 AM CASE NUMBER: C23-01054
CASE NAME: SWEET ADELINE INC VS. TASTYWINGS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL AND REQUEST FOR SANCTIONS**
FILED BY: TASTYWINGS INC
<u>*TENTATIVE RULING:*</u>

Defendant Tastywings moves to compel responses and production of documents in response to its requests for production, requests 38 through 47, in defendant's second set of RFPs (served on or about August 11, 2025). Plaintiff served no responses and produced no documents in response to these requests, and has filed no opposition to this motion.

The motion to compel is therefore **granted**. Ptf must serve full and complete written responses to the requests in question, without objections, by February 6, 2026. It must also produce all responsive documents by February 20, 2026.

The Court awards sanctions of $1,335, payable by counsel for plaintiff within 30 days.

16. 9:01 AM CASE NUMBER: C23-03094
CASE NAME: CAROL BERGER VS. BARBARA QUINLAN-TUDDA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY: ZADESKY, LOUIS

****TENTATIVE RULING:****

This case has been **settled**.

Law & Motion
Add On

17. 9:00 AM CASE NUMBER: C24-02448
CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS**
FILED BY: PLAINTIFF
****TENTATIVE RULING:****

Plaintiff FAT.Homes LLC moves to expunge lis pendens based on defendant/cross-complainant Sunayna Bedi's recording of a lis pendens on property owned by FAT.Homes. FAT.Homes argues that Bedi's lis pendens should be expunged because: (1) the claims in the cross-complaint are not real property claims; (2) Bedi cannot establish probable validity of her real property claims; and (3) Bedi failed to serve the lis pendens as statutorily required. The motion is **denied**, but no party is ordered to pay sanctions.

Background

This is a triangular lawsuit, with the three sets of parties being (1) plaintiff FAT.Homes; (2) defendant Brar and Brar's LLC (collectively called Brar here); and (3) defendant Bedi. The actual facts of what happened will remain to be shown at trial or in further proceedings. What the present papers show, however, is this: Brar was the owner of a property in Richmond. Brar and FAT.Homes agreed to a sale of the property from Brar to FAT.Homes. For reasons not very clearly explained, however, FAT.Homes as the buyer did not timely record the grant deed from the sale, thus (as far as county land records could show) leaving Brar in apparent ownership of the property. Brar then took advantage of that fact by granting a deed of trust on the property to Bedi, as part of settlement of an unrelated debt owed by